

25STCV04477 25STCV04477

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TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

July 7, 2026

CASE NUMBER

25STCV04477

MOTION

Motions to Quash Subpoenas

MOVING PARTY

Plaintiff Eswin Ponce

OPPOSING PARTIES

Defendant Western States Regional Council of Carpenters

MOTION

Plaintiff

Eswin Ponce ("Plaintiff") brought this action against Defendant Western States Regional Council of Carpenters ("Defendant"), alleging employment claims. Plaintiff now moves to quash subpoenas defendant served on Deponents Kedren Community Health Center ("Kedren"), SES Companies Inc. ("SES Companies"), and Kaiser Medical Records, Kaiser Collections, Kaiser Radiology, and Kaiser Psychiatric ("collectively, Kaiser"). In the subpoenas to Kedren and Kaiser, Defendant seeks Plaintiff's medical records from 2008 to the present. In the subpoena to SES Companies, Defendant seeks Plaintiff's employment records from 2012 to 2022.

ANALYSIS

If a subpoena requires the production of documents, the Court may quash the subpoena entirely or modify it. (Code Civ. Proc., § 1987.1, subd. (a).) In ruling on a motion to quash, "the Court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive." (Code Civ. Proc., § 1987.2, subd. (a).)

While plaintiffs are not obligated to sacrifice all privacy to seek redress for a specific physical, mental, or emotional injury, "they may not withhold information which relates to any physical or mental condition which they have put in issue by bringing this lawsuit." (Britt v. Superior Court (1978) 20 Cal.3d 844, 864 (Britt); City & County of San Francisco v. Superior Court (1951) 37 Cal.2d 227, 232.) A plaintiff suing for personal injuries waives the physician-patient privilege to some extent, but this does not make discoverable all of a plaintiff's lifetime medical history. (Britt, supra, 20 Cal.3d at pp. 863-864.)

In the instant case, Plaintiff contends Defendant discriminated and retaliated against him because of his disability. Plaintiff asserts he "had various disabilities throughout his employment, including anxiety, panic attacks, kidney stones, stomach issues, and other disabilities." (See, e.g., Plaintiff's Motion to Quash Subpoena for Production of Plaintiff's Private Records from Kedren Community Health Center, p. 1.)

In support of his motion, Plaintiff relies on Tylo v. Superior Court (1997) 55 Cal.App.4th 1379 (Tylo). In Tylo, the Court of Appeal held questions into private matters is permissible “as long as they relate to the specific subject matter tendered in the litigation.” (Id. at p. 1391.) In the instant matter, however, Defendant seeks from Kedren and Kaiser, irrespective of time, “any and all medical records . . . which includes psychiatric records . . . in the possession, custody, or control of your facility.” (See, e.g., Plaintiff’s Separate Statement in Support of His Motion to Quash Defendant’s Deposition Subpoena, p. 1.) As noted above, Plaintiff has expressly asserted the ailments he suffers. Thus, only medical records relating to those specific ailments are to be produced, and they are to be produced appropriately limited as to time.

The Court, therefore, limits the subpoenas to Kedren and Kaiser to records which pertain to Plaintiff’s anxiety, panic attacks, kidney stones, stomach issues, and any other claimed disabilities which are pertinent to Plaintiff’s claims.

The Court likewise limits the subpoenas to records from November 1, 2020 to the present, which covers the time starting from two years before Plaintiff started working for Defendant.

As for the records sought from SES Companies, Plaintiff similarly has a right to privacy in his employment history. (Alch v. Superior Court (2008) 165 Cal.App.4th 1412, 1426-1427.) Accordingly, the Court cannot order disclosure of Plaintiff’s employment records unless the records are directly relevant to this litigation. (See Britt, supra, 20 Cal.3d at pp. 855-856.) In this regard, the sheer breath of Defendant’s request for all documents relating to Plaintiff’s employment with SES Companies between 2012 and 2025 is highly problematic. (See Declaration of Andrew Butzen in Support of Plaintiff’s Motion, Exhibit 1, Attachment 3.)

Defendant does not dispute Plaintiff’s representation he last worked for SES Companies at least Five years before Plaintiff commenced working with Defendant. The Court acknowledges his employment with SES Companies may be directly relevant to some of Plaintiff’s claims, such as for economic damages, as those records may reflect Plaintiff’s prior earnings. Likewise, any requests for disability accommodations Plaintiff’s may have made while at SES Companies may be pertinent to Plaintiff’s claim he required accommodations from Defendant. Nonetheless, Defendant’s request lack the necessary particularization, and Defendant has not established a need for any

information from SES Companies which predates by at least five years Plaintiff's work with Defendant.

Accordingly, as Defendant has not reasonably particularized the relevant, nor responsive, documents it seeks, and it does not thereby defeat Plaintiff's right of privacy regarding his personal financial information, the motion to quash the subpoena to SES Companies at this time is granted. The parties may meet and confer and determine which, if any documents, may be directly related to the issues in this case, responsive, and not too remote in time and revisit the issue with this Court, if necessary.

CONCLUSION AND ORDER

The motion to quash the subpoena for responsive documents from Kedren and Kaiser is denied. Those parties are ordered to produce the relevant responsive documents in keeping with the Court's ruling within 30 days of the issuance of this order, unless the parties agree to a later time. The motion to quash the subpoena directed to SES Companies is granted.

Defendant is to give notice of the Court's ruling and to file proof of service of same.